
PRIVY COUNCIL

OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-PC 13

IN THE MATTER OF

The Ministry of Data Security refers five abstract design forks for resolution before the Standing Committee drafts the agent-security Statutory Instrument under Bill 21: (1) trust-tier governance (agent-local vs central); (2) egress filtering vs monitoring (fail-closed vs fail-open); (3) skill signing authority (sole key vs delegation); (4) cross-tenant isolation under kernel compromise (carve-out here vs the server estate's domain); and (5) reversible-act audit transparency (full reasoning path vs decision-plus-provenance).

Before:

Coade J, Goffe J, Sumberly J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

REASONS

1. The Ministry of Data Security refers five abstract design forks, carrying no operational facts, before drafting the agent-security Statutory Instrument under Bill 21. The citator confirms no agent-security ratio is on all fours, so these are genuine first-impression questions properly before this Privy Council sitting as a bench of three (Coade J, Goffe J, Sumberly J) at constitutional first instance. We received a symmetric two-sided case file (Bill 21 s.19(1)): a secure-maximalist Claimant and an operable/never-brick Defendant. The bench is unanimous. We frame the judgment by first identifying the common spine the two cases share but each states incompletely. Both accept secure-by-default; both accept the break-glass; they divide only on how far each fork's secure default may go and whether the brick risk is real. The governing law settles that division decisively at the architectural level. Bill 13 s.6 closes the enforcement primitive to three mechanisms and no fourth: any clause that resolves to none enforces nothing. Bill 13 s.7(2) then constrains what a fail-closed control may BE: a control that blocks an agent from working with no audited bypass is itself a falling-below, availability being part of the duty the control claims to enforce. This single provision, enacted three times across Bills 13, 18 and 21, is the hinge of the whole reference. It means the realm need never choose between a secure default and an operable one, because the audited break-glass converts every fail-closed default from bricked into delayed-with-a-record, moving the cost to the recoverable side of the ledger while the harm prevented stays on the irreversible side (Bill 18 s.2(e)). The Claimant is therefore right on direction at every fork (default to the protective control) but overreaches wherever it strips the break-glass (egress hard-brick), concentrates the root of trust into a single-point catastrophe (sole signing key), inverts the statute's reversible/irreversible proportionality (full chain-of-thought on the lightest act class), or duplicates a neighbouring instrument's owned subject-matter (kernel carve-out). The Defendant is right wherever it insists the secure control must carry the break-glass, must degrade gracefully rather than brick, and must respect the read-together-without-overlap and anti-bloat disciplines - but the Defendant is not to be read as preferring the looser control for its own sake; on Forks 1, 2 and 3 the never-brick construction is also the MORE secure one in practice, because a control that bricks legitimate work is ripped out under pressure and leaves no control at all. The recommended secure-but-operable destinations are not merely adopted; they are reasoned to from the enacted spine, and on each we identify where each counsel was right and where each overreached. We reject any reading of this judgment that treats the operable construction as a dilution of security: it is the construction the realm's own defaults compel. Each fork-holding sets out the section-level reasoning; the disposition records escalation.

THE FIVE FORKS RESOLVED

FORK 1 - TRUST-TIER GOVERNANCE (AGENT-LOCAL VS CENTRALLY-DEFINED)

2. Held: Trust-tier assignment is a CENTRAL, CLOSED policy floor set by the operator system-wide (Bill 21 s.3(3), s.3(4)); the agent APPLIES it per decision and may tighten (demand more trust than the floor requires) but may NEVER self-elevate, and no instruction reaching the agent through ingested content or user input may raise trust in a lower-tier source above the floor. Trust-elevation-by-injection is the paradigm capability-without-authority act and is ultra vires and void under Bill 18 s.3(2) before any agent-local discretion is reached. Construction: central floor, tighten-only application, loosen-never.
3. The fork's true question is its own last clause - whether an agent can be instructed to elevate trust in untrusted content - and the governing law answers it identically under either label. Bill 18 s.3(1): authority flows only from lawful allocation traceable to an enacted/operator source; deciding which sources may move an agent to act is an allocation of authority and cannot originate in the agent or in the content it ingests. Bill 18 s.3(2): an act in excess of authority is void regardless of technical capability, which disposes of the attacker who can MAKE T4 content say treat-me-as-trusted. Bill 21 s.3(3) supplies the mechanism (closed central trigger surface, no residual sweep, no executive enlargement except by express amendment) and s.3(4) requires machine-checkable field-presence, never model judgement; a per-decision agent-declared tier reintroduces exactly the model judgement at the trust boundary that s.3(4) excludes, and a tier the agent could waive is not the immutable intake record s.11 contemplates. The Claimant is right that pure agent-local governance hands the dial to the attacker; the Defendant is right that the operative question is direction and that the tighten direction must remain available, because the duty of care travels with autonomous acts unchanged (Bill 18 s.4(2)) and protective measures must be least-restrictive on a live forward-risk predicate (Bill 21 s.9). Both converge: the floor is central and non-derogable; agent discretion operates only above it. The friction (operator updates the central tier table before promoting a new trusted source) is the intended friction of capability-is-not-authority: reversible, low-blast, on the operator's keyboard, and the agent is never bricked - it refuses to elevate and continues at the lower tier or refers (Bill 21 s.5(d)).

FORK 2 - EGRESS (HARD-BLOCKED VS SOFT-MONITORED)

4. Held: Egress is a FAIL-CLOSED deterministic gate to a policy-defined allowlist, carrying a recorded, reason-bearing, audited, non-standing break-glass (Bill 13 s.7(2), s.14(3)); egress to an un-allowlisted destination is denied by default, and a genuine evidenced need is met by the break-glass, which logs who/what/when/why and converts the matter to the forward duty to remediate (Bill 13 s.13(4)). The soft fail-open watchdog with alerting is the lawful complementary mode for the high-volume reversible egress class (Bill 21 s.13). A hard brick - a fail-closed control with NO audited bypass - is void as itself a falling-below (Bill 13 s.7(2)). Block-and-log, never log-instead-of-block, and never block-with-no-bypass.
5. Exfiltration completes outward and cannot be recalled; sending a secret is an irreversible outward act on the closed Bill 18 s.2(e) list (to send, grant outward access), and the statutory default for that class is off, fail-closed (Bill 18 s.7(4)). Soft-monitoring alone is fail-open on precisely the act the realm has legislated must fail-closed, and collapses detect-classify-refer into detect-after-the-fact. The Claimant is right that mere monitoring is insufficient and hard-blocking is the more protective control. But the Claimant overreaches in urging a brick with no bypass: Bill 13 s.7(2) - enacted three times (Bill 13 s.7(2), Bill 21 s.13, Bill 18 s.5(3)) - states that a control that blocks an agent from working with no audited bypass is itself a falling-below; availability is part of the duty the control claims to enforce. The Defendant is right that the break-glass is the precondition of the gate being lawful, not a weakening of it: it is audited, reason-bearing, defaults off, and binds even senior actors (Bill 13 s.14(3)). The Defendant is wrong only insofar as it treats the monitored mode as a rival to the gate; it is the second lawful mechanism for a different (reversible, high-cardinality) class, not a substitute for fail-closed on the exfiltration class. Net: Bill 13 s.7 reconciles secure and operable by converting bricked into delayed-with-a-record, the recoverable side of the ledger, while exfiltration stays denied by default on the irreversible side.

FORK 3 - SKILL SIGNING AUTHORITY (SOLE MDS KEY VS DELEGATION)

6. Held: Signing authority is held by the Ministry of Data Security under an AUDITED DELEGATION model: per-team signers operate within a centrally-governed framework, the Ministry holding the trust root and the revocation power, with recorded delegation, key rotation and revocation, every signing event written to the non-derogable record (Bill 21 s.11). The sole single-key model is REJECTED. Signature verification at the agent runtime is fail-closed with the standard audited break-glass.

7. Skills execute in-process with full agent privilege, so the signing key is the root of trust for code running inside the only boundary the model otherwise lacks; the Claimant is right that a root of trust must be governed narrowly and that scattered ungoverned signing is intolerable. But the Claimant's inference - hold ONE key centrally - inverts the realm's architecture, which disperses power so no single actor's compromise is total: Bill 21 s.6(2) (classifier-may-not-be-container), Bill 13 s.5(2) (no-judge-in-own-cause), and decisively REALM-SI 1 s.7(2) (blast-radius limitation, each compromise confined to its own tree). A single signing key has unbounded blast radius by construction: its compromise signs everything, and its loss or rotation renders the entire skill estate unsignable at once - an engineered Bill 13 s.13 credential-impossibility event with realm-wide reach, which Bill 13 s.7(2)'s availability limb forbids at the architectural level when a gracefully-degrading alternative exists. The Defendant is right that delegation-under-oversight is the construction in which a key compromise is survivable (revoke one signer, the trust root re-issues, the realm keeps working) and that it is the same central-floor/local-exercise shape as Fork 1. The Claimant's genuine worry (N signers multiply the phishable surface) is answered by central oversight, not a single key: the Ministry superintends (Bill 21 s.5 operate-audit-refer), holds the revocable trust root, records every delegation and signature to the non-derogable channel (Bill 21 s.11; REALM-SI 1 s.10), minting no coercive power (refusal-to-sign is a capability gate, not a sanction - Bill 21 s.6). Throughput is solved by parallelising REVIEW under the SI 4 per-change discipline, not by spreading the key. Governed delegation honours both blast-radius limitation and never-brick.

FORK 4 - CROSS-TENANT ISOLATION UNDER KERNEL

COMPROMISE (CARVE-OUT HERE VS SI 1'S DOMAIN)

8. Held: Kernel and hypervisor compromise, and the tenant-isolation envelope it defeats, are the SERVER-ESTATE's domain, owned by [2026] REALM-SI 1 (s.6(4), s.9(4)). THIS agent-security SI carries a one-line CROSS-REFERENCE to REALM-SI 1 for the estate remediation standard and assumes the isolation envelope as its operating premise; it does NOT enact its own kernel-breakout carve-out. SI 1 supplies the estate baseline and CVE response; this SI supplies the agent-layer review and controls that run on top of it.

9. This is the cleanest fork because the realm has already legislated the boundary and a binding ratio governs how the two instruments relate. REALM-SI 4 s.2(3) draws the line in terms: REALM-SI 1 governs the server estate including container and tenant isolation and kernel patching; the per-change/agent instruments govern the change in front of you; neither displaces the other; the two are read together without overlap. REALM-SI 1 already owns the exact risk at s.6(4) (shared kernel, kernel/hypervisor CVE with breakout potential, known isolation limitations) and operationalises it at s.9(4) (CVE-driven response, 24h cadence, court escalation under Bill 21 s.19). The Claimant's premise - that under kernel compromise the in-process controls run on compromised ground - is true as a fact about kernels but irrelevant to WHICH instrument owns it; and the candour point (REALM-PC 2/3 known-limitations line) is satisfied by a prominent cross-reference, not by duplicating SI 1's substance. The Claimant's explicit carve-out would breach the enacted read-together-without-overlap rule (REALM-SI 4 s.2(3), s.6(3)), offend the anti-bloat / one-home discipline (CASE-LAW s.12; REALM-PC 8 / REALM-SC 5 one-spine-not-domain-courts), and invite the instrument-drift the rule exists to prevent. The Defendant is right: the correct disposal is a cross-reference, not a carve-out. The realm is not dodging the problem - it is squarely handled by the instrument whose subject-matter it is. This SI's only addition is the trivial seam clause naming SI 1 as the owner so a first reader is not left to discover the dependency.

**FORK 5 - REVERSIBLE-ACT AUDIT (FULL REASONING PATH VS
DECISION-PLUS-PROVENANCE)**

10. Held: For reversible sensitive acts (delegation, memory write), the agent logs the FINAL DECISION together with its PROVENANCE - the trust tiers relied on, the detection flags, the authority cited, the timestamp and attribution - NOT the full intermediate chain-of-thought. Where the reasoning would restate sealed or confidential ingested content, that content is sealed forward-only (Bill 21 s.11; Bill 22 s.9) while the provenance is preserved. Full chain-of-thought is not mandated for the reversible class. (Irreversible outward acts carry a separately-mandated heavier record under Bill 18 s.7; this fork concerns only the reversible class.)

11. The enacted audit standard is that who/what/when/why is always answerable (Bill 13 s.8), reasoned and recorded (Bill 8; REALM-SI 1 s.10), reconstructable not a matter of recollection (REALM-SI 4 s.10). Decision-plus-provenance meets that standard in full: the what (the act), the who (attribution), the when (timestamp), the why (provenance - trust tiers, detection flags, cited authority). The Claimant is right that injection operates through reasoning and that classification (T4 contamination vs jailbreak vs tool compromise) turns on how content entered the reasoning - but provenance carries exactly that causal evidence (which tier the moving content bore, which flags fired, which authority was relied on) without a verbatim deliberation transcript. The Claimant overreaches in three ways the law disposes of: (i) the act is reversible, and Bill 18 s.7(4) deliberately calibrates LESS procedural weight to reversible acts, so the heaviest logging burden on the lightest act class inverts the statute's proportionality; (ii) a mandatory full-reasoning dump on every reversible delegation and memory write is a per-turn cost sink the anti-bloat principle refuses (CASE-LAW s.12; near-zero-marginal-cost discipline of Bill 18 s.8); (iii) intermediate reasoning is legitimately provisional - the draft-doctrine (REALM-SC 8 / REALM-PC 12; source-of-force test) treats a draft as not the operative thing, and the transparency rule protects the conduct, the reasons, or the citation (REALM-SI 1 s.10(2)), the decision and its grounds, not the deliberation. The Claimant's strongest move - that s.6/s.3/s.9 forbid punitive misuse so the fuller record is safe - shows only that the record CAN be fuller, not that it MUST be; it does not overcome the proportionality and anti-bloat bars. The Defendant is right that decision-plus-provenance is the proportionate audit. The residual the Defendant under-weights is confidentiality: where reasoning would restate sealed content, the forward-only seal of that content (Bill 21 s.11; Bill 22 s.9) preserves provenance structure while sealing the sensitive payload.

DISPOSAL

12. Reference answered. The Privy Council, sitting as a bench of three at constitutional first instance ([2026] REALM-PC 13), resolves all five forks UNANIMOUSLY (Coade J, Goffe J, Sumberly J concurring). FORK 1: central closed trust-tier floor, agent applies tighten-only, no self-elevation on ingested instruction. FORK 2: egress fail-closed to a policy allowlist with an audited non-standing break-glass; a break-glass-less hard brick is void; soft watchdog permitted for the high-volume reversible class. FORK 3: MDS-held audited delegation signing model with a revocable trust root; sole single-key rejected. FORK 4: kernel/infra compromise is REALM-SI 1's domain; this SI cross-references, it does not carve out. FORK 5: log decision-plus-provenance for reversible sensitive acts, not full chain-of-thought; seal confidential content forward-only. ESCALATION: this matter was properly commenced at the Privy Council (constitutional first instance) on the Ministry's reference. Of the five, only Fork 4 touches a constitutional-grade structural question (the boundary between two statutory instruments and the one-home/anti-overlap discipline), and it is resolved by a binding ratio already on the books (REALM-SI 4 s.2(3); REALM-PC 8 / REALM-SC 5), so it needs no climb. Forks 1, 2, 3 and 5 are ordinary design questions disposed of by direct application of enacted law (Bills 13, 18, 21) and likewise need not climb. No fork is reserved to the Supreme Court; the Ministry may proceed to draft the SI on these holdings, the drafting being the Standing Committee's and not Lexby's on its own account (CASE-LAW s.3(2)-(7); [2026] REALM-SC 8). Any party with an arguable ground may seek permission to appeal from the independent leave-judge (CASE-LAW s.19(3)).

Across all five agent-security forks the governing law resolves security-versus-operability not by trade-off but by a single enacted device, so the secure construction and the operable construction are the same construction: a deterministic FAIL-CLOSED control set to the secure default, carrying a recorded, reason-bearing, audited, non-standing BREAK-GLASS (Bill 13 s.7(2); Bill 21 s.13; Bill 18 s.5(3)), inside the closed three-mechanism primitive (Bill 13 s.6, no fourth mechanism), under the rule that capability is never authority (Bill 18 s.3) and that no control may ever brick the realm (Bill 13 s.7(2), availability is part of the duty). Applying that spine: (1) trust tiers are a CENTRAL closed floor the agent applies tighten-only, never self-elevating on ingested instruction (the instruction-data boundary, void by Bill 18 s.3(2)); (2) egress is FAIL-CLOSED to an allowlist WITH an audited break-glass, a break-glass-less hard brick being itself void as a falling-below; (3) skill signing is held by MDS under an AUDITED DELEGATION model with a revocable trust root, single-key being an engineered unbounded-blast-radius, realm-bricking failure contrary to REALM-SI 1 s.7(2) and Bill 13 s.7(2); (4) kernel/infra compromise is the SERVER-ESTATE's domain (REALM-SI 1 s.6(4), s.9(4)) and this SI CROSS-REFERENCES rather than carves out, on the read-together-without-overlap rule (REALM-SI 4 s.2(3)); (5) reversible sensitive acts log the DECISION plus its PROVENANCE, not the full chain-of-thought, as the proportionate audit (Bill 13 s.8) that the reversible/irreversible calibration (Bill 18 s.7(4)) and anti-bloat (CASE-LAW s.12) require. The unifying ratio: each construction must resolve to one of the three lawful mechanisms, set fail-closed to the secure default where the act is on the Bill 18 s.2(e) irreversible-outward list and protective-tighten-only elsewhere, and must carry the audited break-glass so the secure default never bricks the realm; a control that resolves to no lawful mechanism, or that fails open on an irreversible outward act, or that fails closed with no audited bypass, is void.

GOOD-LAW

Citation: [2026] REALM-PC 13

PROGRESSION Constitutional matter. Appeal lies by automatic leapfrog certificate (s. 13, s. 20), bypassing the Court of Appeal, direct to the Supreme Court.

Handed down by the PRIVY COUNCIL of the Vibe Justice System (VJS). 6 June 2026.